



KALAMAZOO COUNTY GOVERNMENT

201 W. Kalamazoo Ave., Kalamazoo, MI 49007 | www.kalcounty.com | 269-384-8111

BOARD AGENDA REQUEST FORM

2025-538

PROPOSED FOR BOARD MEETING OF: June 3, 2025
DEPARTMENT: Planning
PREPARED BY: Rachael Grover, Planning Director
SUBJECT: Request for Approval and Signature of a Contract with Wightman & Associates, Inc.

SPECIFIC ACTION REQUESTED:

Request for Approval and Signature of a Contract with Wightman & Associates, Inc.

DESCRIPTION OF ACTION (dollar amount, purpose):

Request for approval and signature of a contract with Wightman & Associates, Inc. for the remonumentation of County corners as required by the 2025 Grant Agreement.

TIME FRAME OF ACTION:

January 1, 2025 through December 31, 2025

FUNDING SOURCE & BUDGET CHANGES:

State of Michigan Grant (Licensing and Regulatory Affairs-LARA) grant for \$87,125.00.

PERSONNEL IF REQUIRED:

None. The County Planning Director serves as the Grant Administrator and the County Surveyor is the Chairperson of the Remonumentation Peer Review Group that reviews all corners surveyed by the grant.

NEW OR RENEWAL:

Renewal of annual surveyors contracts.

ANY OTHER PERTINENT INFORMATION:

The Remonumentation Grant is for the implementation of Act 345 of the Public Acts of 1990, as amended.

PROCUREMENT INFORMATION:

Sole Source approved by the Purchasing Department on 5-8-25. Professional surveyors'

work is subject to the 2025 Remonumentation Grant Agreement and the Fee Schedule for the approved Remonumentation Policies of Kalamazoo County. The surveyors are part of the Peer Review Group and are area professional surveyors with monumentation experience.

CONTACT PERSON:

Lyndi Smith, Deputy County Administrator for External Services, 269-383-8901

**CONTRACT FOR PROFESSIONAL SERVICES BETWEEN THE COUNTY OF KALAMAZOO
AND
WIGHTMAN & ASSOCIATES, INC.**

THIS CONTRACT is made and entered into this _____ day of _____, 2025, between the County of Kalamazoo, a municipal corporation and political subdivision of the State of Michigan (County), 201 West Kalamazoo Avenue, Kalamazoo, Michigan 49007, and Wightman & Associates, Inc. (Consultant), 433 E Ransom Street, Kalamazoo, Michigan 49007.

WHEREAS, the County desires to contract with the Consultant to provide remonumentation services; and

WHEREAS, the Consultant possesses the experience, expertise and training to accomplish the duties outlined in this contract.

SECTION I. THE CONSULTANT'S DUTIES

The Consultant agrees to perform the following duties:

1. Submit corner-position documentation, including historic research and the GPS coordinates, to the Peer Review Group of the Kalamazoo County Remonumentation Program for review of a government section corner monument location of the following NEW corners:
T1S-R12W, ALAMO TWP: B-12, D-12, F-01, F-12, G-01
T4S-R12W, PRAIRIE RONDE TWP : L-06, L-08
T1S-R9W, ROSS TWP: J-04, J-06, L-06, L-10
T4S-R11W, SCHOOLCRAFT TWP: D-10, D-12, F-12, H-08, J-08

RESTORATION Corner:
T1S-R12W, ALAMO TWP: A-12
2. After review of the monument location by the Peer Review Group, the Consultant agrees to properly install a standard marker (and box, if required).
3. Remonumentation of the above identified 16 new government section corners and 1 major restoration of a corner shall be completed by December 31, 2025, contingent on consensus among the Peer Review Group regarding the location of the corners. The corners assigned here may be amended with pre-approval of the change in the 2025 Remonumentation Grant work program.
4. After installation of the standard marker, the Consultant shall file a Land Corner Recordation Certificate (LCRC) with the County Register of Deeds, of which two copies shall be forwarded to the County Planning & Development Department. The Remonumentation Grant Administrator shall stamp the LCRC before recording.

SECTION II: COMPENSATION

The County shall compensate Consultant for its services under this Contract not to exceed \$3,600 per new corner, \$1,050 per major restoration corner, and \$1,225 per major restoration corner with addition of latitude and longitude coordinates. If the 2024 Remonumentation Grant budget allows, additional new corners may be assigned to Consultant at the same \$3,600 per corner rate. The work is to be invoiced and paid in the following manner:

Work to be completed as outlined in the attached Exhibit A "Remonumentation Policies for Kalamazoo County" including the Fee Schedule, and Exhibit B "2025 Grant Agreement Between State of Michigan, Department of Licensing and Regulatory Affairs and Kalamazoo County".

Payments will be made within 45 days of receipt of an invoice from the Consultant.

SECTION III: GENERAL TERMS AND CONDITIONS APPLICABLE TO BOTH PARTIES

The following duties and responsibilities apply equally to the Consultant and the County unless the language of the provision clearly indicates that it applies only to the Consultant or the County.

1. **INSURANCE.** The Consultant shall provide the County with a certificate of insurance providing for a commercial liability insurance policy on an occurrence basis with policy limits of at least one million dollars (\$1,000,000) to include, but not be limited to, personal injury, bodily injury, property damage and contractual liability. The Consultant shall have the County listed as an additional insured on the certificate of insurance (to the extent of the liability which the Consultant assumes under this contract). The insurance certificate shall state that the insurance policy cannot be amended or canceled unless the County is given thirty (30) days written notice. The insurance company issuing the certificate shall strike from the certificate the usual words in the cancellation clause of the certificate which state "endeavor to" or "failure to mail such notice shall impose no obligation or liability of any kind upon the company". The Consultant shall also furnish to the County a certificate of insurance covering the Consultant's Workers Compensation responsibilities for the Consultant's employees. Failure of the Consultant to provide the certificates of insurance or receipt by the County of a Notice of Cancellation of the insurance policies by the Consultant's insurance company(s) shall constitute a material breach of this contract and the County may then, at its sole option, terminate this Contract immediately.
2. **INDEMNITY.** The Consultant agrees to indemnify and hold harmless the County, its agents, employees, officers and representatives from all fines, costs, lawsuits, claims, demands and actions of any kind or nature, including reasonable attorney fees, which occur by reason of any wrongful act, negligence, or wrongful omission on the part of the Consultant, its agents, employees, officers, or representatives, in performing this contract. To the extent permitted by law, the County agrees to indemnify and hold harmless the Consultant, its agents, employees, officers and representatives from all fines, costs, lawsuits, claims, demands and actions of any kind or nature, including

reasonable attorney fees, which occur by reason of any wrongful act, negligence or wrongful omission on the part of the County, its agents, employees, officers, or representatives, in performing this contract; provided that nothing herein contained in this Contract constitutes, nor shall be construed, as a waiver of any governmental immunity that has been provided to the County and its agents, employees, officers or representatives by common law, statute or court decision.

3. ASSURANCES AGAINST DISCRIMINATION. Consultant assures that it shall not discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions, or privileges of employment because of race, creed, color, religion, national origin or ancestry, gender, age, marital status, height, weight, or disability/handicap unrelated to the person's ability to perform the duties of a particular job or position. Breach of this provision shall constitute a material breach of this Contract and authorizes the County to, in its sole discretion, immediately terminate this Contract.
4. DISPUTE RESOLUTION. In the event a dispute arises between the County and the Consultant concerning the performance of this Contract, the parties agree to meet, and negotiate in good faith, in order to attempt to resolve the dispute. Said meeting shall take place within thirty (30) days after one party sends the other party written notice identifying the cause or reason for the dispute and requesting a meeting. THIS PARAGRAPH DOES NOT APPLY TO DISPUTES INVOLVING ACTS, CONDUCT, ERRORS, NEGLIGENCE OR OMISSIONS BY THE COMPANY THAT ARE IDENTIFIED IN THIS CONTRACT AS CONSTITUTING A MATERIAL BREACH OF THIS CONTRACT.

Both parties agree that any legal dispute including collection of unpaid fees shall be the financial responsibility of the party that prevails. Any legal disputes shall be governed by the laws of the State of Michigan. In the event any actions arising under this Agreement are brought by or against the County, such actions shall be in Michigan Courts whose jurisdiction and venue shall be established in accordance with the statutes of the State of Michigan and/or Michigan Court Rules. In the event that any action is brought in or is moved to Federal Court, the venue for such action shall be the Federal Judicial District of Michigan, Western District, Southern Division.

5. RELATIONSHIP BETWEEN THE PARTIES. It is expressly understood and agreed that the Consultant is an independent contractor. The County is interested only in the results to be achieved by the work to be performed by the Consultant under this Agreement, the conduct and control of the work shall rest solely with the Consultant. The Consultant, its subcontractors, and any employees of the Consultant or subcontractor shall in no way be deemed to be, and shall not hold themselves out as, an employee, servant or agent of the County and shall not be entitled to any fringe benefits of the County, such as, but not limited to, health and accident insurance, life insurance, paid vacation or sick leave, or longevity. The Consultant shall be responsible for paying any vendors providing supplies which the Consultant utilizes in the performance of services under this Agreement. The Consultant shall also be responsible for paying any compensation due any persons in its employ or subcontractors and for withholding and payment of all applicable taxes,

including, but not limited to, income and social security taxes to the proper Federal, State and Local governments. The Consultant certifies that it has no interests which would conflict with the performance of services required by this Agreement. The Consultant also assures that, in the performance of this Agreement, no officer, agents, employee of the County, or member of its governing bodies, may participate in any decision relating to this Agreement which affects his/her personal interest or the interest of any corporation, partnership or association in which he/she is directly or indirectly interested or has any personal or pecuniary interest. However, this paragraph does not apply where specifically exempt under Michigan Law.

6. NOTICES. Any Notice/Communication required, or permitted, under this Contract from one party to another, including the Consultant's request for assistance from County personnel in carrying out Consultant's duties under this Contract, shall be deemed effective if the party sending the Notice/Communication hand delivers the Notice or communication to the other Party or if the Party sends the Notice/Communication through first class mail to the other Party. The Parties agree that Notices and Communications should be sent to the Parties at the following addresses:

CONSULTANT:	COUNTY:
Wightman & Associates, Inc.	Planning & Development Department
Attn: Gary Hahn, PS	Attn: Rachael Grover
433 E Ransom Street	201 W Kalamazoo Ave
Kalamazoo, Michigan 49007	Kalamazoo MI 49007

7. WAIVERS: No failure or delay on the part of either of the parties to this Agreement in exercising any right, power or privilege thereunder shall operate as a waiver thereof, nor shall a single or partial exercise of any right, power, or privilege, preclude any other or further exercise of any other right, power, or privilege.
8. AMENDMENTS: Modifications, amendments, or waivers of any provision of this Agreement may be made only by the written mutual consent of the authorized representatives of both the County and the Consultant.
9. SUBCONTRACTING AND ASSIGNMENT: The Consultant may not subcontract portions of the work to be performed under this Agreement without prior written approval from the County. In the event of such subcontracting, the Consultant shall be responsible for paying all compensation owed to the subcontractor(s) for services performed and ensuring that the subcontractor(s) complies with the requirements of this Agreement.
10. AGREEMENT PERIOD TERMINATION: This Agreement shall commence on January 1, 2025, and, unless prematurely terminated as authorized in this Agreement, shall continue through December 31, 2025. Notwithstanding any other provision in this Agreement to the contrary, the County may terminate this Agreement with 14 days prior written notice to the Consultant in the event that the services of the Consultant are deemed by the County to be unsatisfactory, or upon failure of the Consultant to perform any of the terms

and conditions contained in this Agreement. Termination of this Agreement shall not be construed as a waiver by either party of any rights or remedies they may have in law or in equity arising from a breach of the terms of this Agreement.

11. SECTION TITLES: The titles of the sections set forth in this Agreement are for reference only and shall be disregarded when construing or interpreting any of the provisions of this Agreement.
12. COMPLETE AGREEMENT: This Agreement and other documents incorporated herein by reference contain all the terms and conditions agreed upon by the parties, and no other agreements, oral or otherwise, regarding the subject matter of this Agreement or any part thereof shall have any validity or bind any of the parties.
13. SEVERABILITY OF INVALID PROVISIONS: If any part of this Agreement is declared by any Court having jurisdiction to be invalid, unconstitutional, or beyond the authority of either party to enter into or carry out, such part shall be deemed deleted and shall not affect the validity of the remainder of this Agreement, which shall continue in full force and effect. If the removal of such provision would result in the illegality and/or unenforceability of this Agreement, this Agreement shall terminate as of the date in which the provision was found invalid, unconstitutional or beyond the authority of the parties and the County shall receive all commissions to which it is entitled under this Agreement, up to the date of termination.
14. CERTIFICATION OF AUTHORITY TO SIGN AGREEMENT: The people signing on behalf of the parties to this Agreement hereby certify by their signatures that they are duly authorized to sign this Agreement on behalf of said parties and that this Agreement has been authorized by said parties.

THE AUTHORIZED REPRESENTATIVES OF THE PARTIES HERETO HAVE FULLY SIGNED THIS AGREEMENT ON THE DAY AND YEAR FIRST ABOVE WRITTEN.

SIGNATURE PAGE

Wightman & Associates, Inc.

By: _____
Gary Hahn, Professional Surveyor

Date: _____

COUNTY OF KALAMAZOO

By: _____
Jennifer A. Strebs, Chairperson
County Board of Commissioners

Date: _____

APPROVED AS TO FORM FOR COUNTY OF KALAMAZOO:
CORPORATION COUNSEL
Edward Winkler, Asst. Corporation Counsel
Date Approved: May 30, 2025.